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San Jose residents sue over city's automated license plate reader network, citing mass surveillance concerns

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Three San Jose residents have filed a class-action lawsuit against the city over its network of automated license plate reader cameras, alleging that the program constitutes a mass surveillance of the public and violates their constitutional rights.

Residents Tony Tan, Scott West and Colin Wolfson announced the lawsuit at a press conference outside a federal courthouse in San Jose on Wednesday, claiming that the city's ALPR cameras violate their right against unreasonable searches and seizures guaranteed by the Fourth Amendment to the United States Constitution.

The trio is represented by the Virginia-based legal nonprofit Institute for Justice, which has also filed a lawsuit against Norfolk, Virginia, over its ALPR network and has helped activists and lawmakers across the country in their fight against the systems.

"Ordinary people shouldn't have to live their lives in a fishbowl, knowing the government is tracking where they drive and compiling that information in a



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across jurisdictions.

Tan said he has familiarity with surveillance networks in China and worries about the proliferation of similar mass surveillance technologies in the U.S.

"I would not want to have the Flock system here in San Jose, ready for ICE or other agencies to abuse," Tan said.

The lawsuit also seeks to require the city to delete license plate data within 24 hours of collection, except when police obtain a warrant for longer retention.

Last month, San Jose placed added restrictions on its ALPR network, limiting where the devices can be installed and reducing the data storage period from one year to 30 days. The new rules prohibit ALPRs from recording vehicles at houses of worship and reproductive health clinics and restrict access by federal and immigration agencies.

The added restrictions came after another lawsuit against the city filed in November 2025 by local advocacy groups, who allege that searches of license plate



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"The San Jose Police Department has robust, transparent policies in place to ensure that the information is not misused in any way, including policies that prohibit direct access to the data to private entities, out-of-state law enforcement agencies, or federal agencies," Alcala Wood said. "In all cases, access to ALPR data by SJPd employees is logged and auditable. Public safety in San José remains the City's top priority, and ALPR is one of many tools used responsibly and lawfully to support that mission and we are actively defending the public's interest to continue to utilize these important tools."

Concerns over the abuse of Flock cameras and the use of data have prompted other Bay Area jurisdictions to remove their cameras, including in Cupertino, Mountain View, Saratoga, and Los Altos Hills.

Flock Safety is also facing a class-action lawsuit that alleges the firm violated California law by sharing license plate data with out-of-state agencies and federal authorities. Meanwhile, California Attorney General Rob Bonta has sued the El Cajon Police Department in San Diego County for allegedly sharing license plate data with over 100 out-of-state law enforcement agencies.

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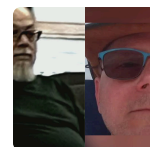
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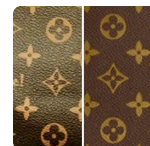
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